



PROFESSIONAL PRACTICES IN IT

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Question 1: Comparison of UDHR and CDHRI

The Universal Declaration of Human Rights (UDHR) and the Cairo Declaration on Human Rights in Islam (CDHRI) both aim to protect human rights, dignity and freedom. UDHR is universal whereas CDHRI includes Islamic points of view which relate with Sharia principles. Both documents share common ground in protecting life, dignity, privacy, and justice, yet they differ in interpretation and application due to cultural and religious contexts.

Four key rights

1. Right to Privacy and Protection of Honor
2. Freedom of Expression
3. Equality and Human Dignity
4. Right to Family and Marriage

1. Right to Privacy and Protection of Honor

The Universal Declaration of Human Rights (UDHR, Article 12) states:

“No one shall be subjected to arbitrary interference with his privacy, family, home or correspondence, nor to attacks upon his honour and reputation. Everyone has the right to the protection of the law against such interference or attacks.”

This shows how strongly the UDHR protects the individual from outside intrusion, whether from the state, media, or other people. In modern times, this can be seen in laws against government surveillance, data leaks, and online harassment. For instance, if a government unlawfully monitors private phone conversations or if social media platforms allow the spread of fake rumors that damage someone's reputation, these would be considered violations under the UDHR.

On the other hand, the Cairo Declaration on Human Rights in Islam (CDHRI, Article 18) states:

“Everyone shall have the right to privacy in the conduct of his private affairs, in his home, with regard to his family, his property and his relations. It is not permitted to spy on him, to place him under surveillance or to besmirch his good name. The State shall protect him from arbitrary interference.”

This article goes beyond just protecting privacy—it also links it to Islamic moral values. It emphasizes that privacy cannot be a cover for actions forbidden by Sharia, such as immoral conduct or harmful practices. For example, while under the UDHR an individual's private life is protected as long as it does not harm others, the CDHRI sets boundaries, saying that privacy must not shield sinful or socially damaging acts.

In short, both declarations defend privacy and personal honor, but the UDHR treats it as an absolute individual right, while the CDHRI places it within the boundaries of morality and community responsibility.

2. Freedom of Expression

The UDHR (Article 19) provides a very broad guarantee:

“Everyone has the right to freedom of opinion and expression; this right includes freedom to hold opinions without interference and to seek, receive and impart information and ideas through any media and regardless of frontiers.”

This means that people are free to voice their opinions, even when those opinions are critical of governments, institutions, or traditions. A real-life example is investigative journalism—when journalists expose corruption or abuse of power, the UDHR provides protection for their work. Similarly, international campaigns like *#MeToo* or *Black Lives Matter* gain strength because people can freely share their experiences and views without fear of punishment.

By contrast, the CDHRI (Article 22) recognizes this right but attaches a clear condition:

“Everyone shall have the right to express his opinion freely in such manner as would not be contrary to the principles of the Shari’ah.”

This means speech is protected, but not without limits. Expressions that insult religion, promote hatred, or spread immorality are not acceptable. For example, while under UDHR publishing cartoons mocking religious figures would be considered free speech, under CDHRI it would be forbidden because it violates respect for faith and community values.

So, UDHR highlights individual liberty with minimal restrictions, while CDHRI emphasizes that freedom of speech must go hand in hand with responsibility, morality, and respect for religious beliefs.

3. Right to Family and Marriage

The UDHR (Article 16) declares:

“Men and women of full age, without any limitation due to race, nationality or religion, have the right to marry and to found a family. They are entitled to equal rights as to marriage, during marriage and at its dissolution.”

This shows that marriage is based on free and full consent, and it applies universally, regardless of cultural or religious background. For example, under the UDHR, a Christian man and a

Muslim woman can freely marry if both agree, and both would enjoy equal rights in the marriage and divorce process. In countries that recognize same-sex marriage, the UDHR framework can also be used to justify this right.

The CDHRI (Articles 5 and 6) also affirms the importance of family and marriage:

“The family is the foundation of society, and marriage is the basis of forming a family. Men and women have the right to marriage, and no restrictions can be imposed on them in this regard except those stipulated in the Shari’ah.”

This clearly shows that marriage is protected, but only within Islamic law. Certain restrictions apply, such as prohibiting Muslim women from marrying non-Muslim men. Moreover, while men and women share dignity, their roles are defined differently: men are responsible for family maintenance, while women are recognized for their role in nurturing and managing the home. For example, a Muslim man may marry a Christian or Jewish woman, but the reverse is not allowed. Similarly, same-sex marriage or cohabitation without marriage is not recognized.

Therefore, both declarations stress that family is central to society, but the UDHR prioritizes individual choice and equality, while the CDHRI stresses religious boundaries and complementary roles.

4. Equality and Human Dignity

The UDHR (Article 1 and 2) begins with a strong universal principle:

“All human beings are born free and equal in dignity and rights. They are endowed with reason and conscience and should act towards one another in a spirit of brotherhood.”

This principle rejects all forms of discrimination—whether based on race, gender, religion, or nationality. In practice, this has been used to promote workplace equality, women’s empowerment, and anti-racism laws. For example, laws in many countries ensure that men and women receive equal pay for equal work and that racial minorities have equal access to education and jobs.

The CDHRI (Article 1 and Article 6) also declares equality and dignity:

“All men are equal in terms of basic human dignity and basic obligations and responsibilities, without any discrimination on grounds of race, colour, language, belief, sex, religion, political affiliation, social status or other considerations.”

At the same time, it clarifies that equality must be understood within Sharia principles. This means that while men and women are equal in worth and dignity, their roles may differ. For example, women are not required to financially support the family, while men are obliged to do

so. In some Muslim countries, family law reflects this distinction: a woman retains her financial independence even after marriage, while a man must bear the financial burden.

Thus, both frameworks uphold human dignity and reject discrimination, but UDHR promotes absolute equality with identical rights, while CDHRI promotes complementary equality where dignity is shared but responsibilities differ.

SUMMARY TABLE

Right	Agreement	Differences	Unique CDHRI Perspective
Privacy & Honor	Both protect personal privacy and human honor.	Both protect personal privacy and human honor.	Privacy is conditional; it must not allow immoral or harmful acts.
Freedom of Expression	Both allow people to express opinions	UDHR = unrestricted, even critical of religion; CDHRI = restricted by Sharia	Expression must respect religion, morality, and social harmony.
Family & Marriage	Both see family as the foundation of society.	UDHR = free choice regardless of race/religion; CDHRI = only within Sharia guidelines.	Family and marriage must align with religious principles
Equality & Dignity	Both affirm dignity and equality of all humans.	UDHR = universal equality without distinction; CDHRI = equality with gender/role-based responsibilities.	Equality is recognized but explained through Sharia roles and duties.

Conclusion (UDHR vs CDHRI):

Both the UDHR and CDHRI aim to protect human dignity, rights, and freedom, but they approach this from different perspectives. The UDHR emphasizes **universal individual rights**, while the CDHRI emphasizes **rights within a moral, social, and religious framework**. They agree on the importance of privacy, family, dignity, and equality, but differ on limits and responsibilities. In real life, this means the same action could be protected under one framework but restricted under the other. Understanding these differences is important for navigating global human rights discussions, respecting cultural contexts, and creating policies that balance individual freedom with community values.

Question 2: Critical Reflection

When we compare the UDHR and the CDHRI, the biggest thing I notice is that they are both trying to protect human dignity, but they do it in very different ways. The UDHR looks at human beings as individuals first, while the CDHRI looks at human beings as part of a family, society, and religious system. Because of this, the differences between them show up in real life in some very important ways.

How These Differences Affect Real-World Issues

One major area where these differences show up is in **freedom of expression and religion**. Under the UDHR, a person has the right to openly change their religion, criticize authority, or even make fun of religious ideas. Under the CDHRI, however, these freedoms are not absolute. Religion, honor, and morality must be respected first.

This plays out in the real world in situations like publishing controversial art, books, or speeches. In a Western country, if someone writes a book criticizing religion, they are protected by the UDHR. But in a Muslim-majority country that follows principles similar to the CDHRI, this same act could be considered offensive and restricted. So the person's "right" looks very different depending on which framework is applied.

Another issue is **gender roles**. The UDHR treats men and women as having identical rights in almost every field, like marriage, work, or politics. The CDHRI, on the other hand, emphasizes equality in dignity but recognizes different roles for men and women. For example, in family law, men may have different financial responsibilities than women. This creates a clash in international discussions about women's rights, especially when Western NGOs push for absolute equality while Muslim communities defend role-based differences.

A Concrete Example

A real-life example of this clash can be seen in the **Salman Rushdie controversy**. In the late 1980s, Rushdie published *The Satanic Verses*, a novel that many Muslims found deeply offensive. From a UDHR perspective, this was his right as a writer—freedom of expression includes the right to criticize or even mock religion. But from a CDHRI perspective, his work was seen as an attack on the honor of Islam and therefore unacceptable.

This example shows exactly how the two documents collide: one puts artistic freedom first, the other puts religious respect first. Neither side sees itself as "wrong"—they are just working from two completely different starting points.

Do These Differences Create Conflict or Complement Each Other?

In my opinion, the differences **do create conflict**, but they also have the potential to **complement** each other if approached with respect.

Here's how the conflict looks in practice:

- **UDHR says:** Everyone should be free to express their opinion, even if it hurts religious feelings.
- **CDHRI says:** Expression must not insult religion, because that hurts social harmony and spiritual dignity.
- **Result:** Conflict, because what one side calls “freedom,” the other side calls “harm.”

Another conflict:

- **UDHR says:** Anyone should be free to change religion.
- **CDHRI says:** Islam does not accept leaving the faith, because it is considered harmful to both the individual and society.
- **Result:** What UDHR calls a right, CDHRI calls a wrong.

But there are also ways these differences can **complement each other** if interpreted carefully. For example:

- When UDHR talks about dignity and privacy, and CDHRI also talks about honor and family values, both are trying to protect the human being. They just put the focus in different places. A balance could be reached where UDHR protects the individual and CDHRI protects the community, and together they cover more ground.
- Another area is equality. UDHR's idea of absolute equality sometimes ignores cultural and social contexts, while CDHRI's role-based equality sometimes ignores personal choice. If the two are brought together, we can aim for a system that protects both **fairness** and **cultural respect**.

Conclusion:

At the end of the day, I see the UDHR and CDHRI as **two conversations talking past each other**. One says: *“This is a right no matter what.”* The other says: *“This is a right, but only in the right way.”* That clash will always create tension, especially in global discussions. But I also think that if both sides listen, they can complement each other. UDHR ensures that no authority takes away personal freedoms. CDHRI ensures that personal freedoms do not damage social and moral values.

So yes, there is conflict, but there is also a chance for cooperation. Instead of asking, “Which one is right and which is wrong?” maybe the better question is, “How can we use both to protect people more fully?”

Question 3: New Rights for Modern Computing Challenges

As technology evolves, traditional human rights frameworks face challenges in addressing issues arising in the digital world. New rights are increasingly needed to protect individuals from harm, preserve dignity, and ensure fairness online. Among these, three crucial rights have been proposed: the **Right to Be Forgotten**, the **Right to Online Freedom of Expression with Responsibility**, and the **Right to Protection from Mass Surveillance**. These rights are designed to address challenges unique to digital platforms, big data, and the pervasive use of personal information online.

Right to Be Forgotten

The Right to Be Forgotten refers to an individual's ability to request the removal or de-indexing of personal information from online platforms, search engines, and public archives when that information is outdated, irrelevant, or damaging. Unlike simple deletion tools on social media or content warnings, this right ensures that once information is shared, it can be effectively erased from multiple sources, not just one account.

Why it is important: In the digital era, personal history can permanently affect an individual's reputation. For example, a person might have posted a careless comment as a teenager or been falsely reported in the news. Even if the post is deleted or the case dismissed, the content may persist in search engines or on other websites. Without this right, individuals remain tied to a digital past that may unfairly influence education, employment, or social relationships.

Real-world illustration: Suppose someone was falsely accused of a minor crime years ago. The case was cleared, but news articles and cached web pages still appear in searches under their name. Employers, colleges, or neighbors may judge them based on outdated information. If the Right to Be Forgotten were fully enforceable, the individual could request the removal of links and restore their dignity and opportunity.

Current limitations: Platforms like Instagram and Facebook allow deletion or content flagging, but copies often exist elsewhere, and global enforcement is inconsistent. A legally enforceable right would require cooperation between companies, governments, and search engines to ensure complete removal where appropriate.

Right to Online Freedom of Expression with Responsibility

Freedom of expression online must balance liberty with accountability. While individuals should be able to voice opinions, share ideas, or criticize institutions, this right emphasizes that speech should not intentionally harm others or spread dangerous misinformation.

Why it is important: Online speech can quickly amplify misinformation, incite hatred, or provoke real-world harm. For instance, false medical advice or hate campaigns can cause injuries or social unrest. Maintaining expression while protecting communities requires rules that prevent harmful content without censoring legitimate critique.

Real-world illustration: During a health crisis, a viral post claims a dangerous home remedy cures a serious disease. Thousands follow the advice, resulting in hospitalization. Under this proposed right, the post would be removed or flagged, reducing harm, while protecting users' ability to discuss health responsibly. Similarly, coordinated hate messages targeting a minority group could be taken down, preventing escalation into real-world violence.

Current limitations: Social media platforms attempt moderation, but inconsistency, algorithm bias, and cross-border jurisdiction issues limit effectiveness. Clear guidelines, appeals processes, and independent oversight are needed to implement this right responsibly.

Right to Protection from Mass Surveillance

Mass surveillance refers to the collection of personal data on a large scale without targeting specific individuals. Governments and corporations now can track communications, browsing behavior, and location data. The Right to Protection from Mass Surveillance ensures that data collection is lawful, necessary, proportionate, and transparent.

Why it is important: Constant monitoring undermines privacy, chills free expression, and creates opportunities for misuse. Individuals may self-censor, avoid political participation, or lose trust in institutions. Personal data may be leaked, sold, or exploited for discriminatory purposes.

Real-world illustration: Suppose a government collects data on all citizens and later identifies peaceful protest participants from the records. These individuals could face job loss, harassment, or social exclusion. Another example is corporate misuse: social media platforms using mass data to profile users for political or commercial manipulation, influencing elections or consumer behavior unfairly.

Current limitations: Laws in many countries still permit blanket data collection. Even with regulations like GDPR, enforcement gaps exist, and private companies often continue mass data collection under vague consent terms. Clear legal safeguards and independent audits are necessary to protect citizens effectively.

Conclusion

Modern technology presents challenges that traditional human rights frameworks do not fully address. The Right to Be Forgotten, Right to Online Freedom of Expression with Responsibility, and Right to Protection from Mass Surveillance are crucial to safeguard individuals in the digital world. Without these rights, people face reputational harm, misinformation, and intrusive surveillance. Implementing these rights with enforceable laws, clear guidelines, and cooperation between governments and tech platforms can protect personal dignity, privacy, and freedom online. These rights are essential for adapting human rights to the realities of the digital age, ensuring safety, fairness, and accountability in online interactions.

